

DECLARATION OF PRINCIPLES

This Declaration of Principles is executed in favor of and for the benefit of:

1. **PUMA SE**, a company incorporated under the laws of Germany, having its principal place of business at Puma Way 1, 91074 Herzogenaurach ("**PUMA**")
2. **WORLD CAT LIMITED**, a wholly owned subsidiary of PUMA incorporated under the laws of Hong Kong, having its principal place of business at 21st Floor, AIRSIDE, No.2 Concorde Road, Kai Tak, Kowloon, Hong Kong ("**World Cat**")
3. Various principals for whom World Cat acts as an agent, in particular **PUMA INTERNATIONAL TRADING GMBH**, or other affiliates of PUMA or any other principal designated by World Cat (each a "**Principal**" and together the "**Principals**").

By executing this Declaration of Principles, the undersigned ("**Supplier**") hereby undertakes and agrees as follows:

1. General

1.1. The following Declaration of Principles (the "**Declaration of Principles**") further specifies the principles and standards which need to be observed by Supplier in the course of manufacturing and supply of materials, components or parts for PUMA Products ("**Component Manufacturing**").

1.2. The following annexes shall be part of the Declaration of Principles:

- 1.2.1. Annex A – Anti-Corruption Statement;
- 1.2.2. Annex B – Building Safety Policy;
- 1.2.3. Annex C – Animal Protection Policy;
- 1.2.4. Annex D – PUMA Sustainability Audit Policy;
- 1.2.5. Annex E – Restricted Substances Policy;
- 1.2.6. Annex F – PUMA Cotton Sourcing Policy

(all such annexes jointly the "**Annexes to the Declaration of Principles**").

2. Declaration of Principles

2.1. Supplier is aware, that it is indispensable for the international reputation of PUMA to insist that the Supplier and its manufacturing partners observe social and environmental standards with respect to the work place conditions and employees. Supplier declares hereby that this corresponds also to its intentions and convictions and that it guarantees these rights to all respective employees and any other affected stakeholder such as the community in which Supplier is operating.

- 2.2. Notwithstanding the generality of Section 2.1, Supplier shall respect the internationally recognized human rights of those affected by its activities. In particular, Supplier undertakes to observe and comply with all applicable laws, statutes and regulations to avoid slavery, servitude, forced or compulsory labour and human trafficking, including, but not limited to, the United Kingdom Modern Slavery Act 2015 and similar acts or provisions and not engage in any activity, practice or conduct which would constitute an offence against these acts or provisions.
- 2.3. Supplier acknowledges that it has received PUMA's Code of Conduct and Code of Ethics (the "**Codes**"), and the "Occupational Health & Safety", "Social Standards", "Chemical Management" and "Environmental Standards" Handbooks (all such Handbooks jointly the "**Sustainability Handbooks**") and/or has read the Codes and the Sustainability Handbooks, available online (<https://about.puma.com/en/sustainability/codes-policies-and-handbooks>).
- 2.4. Supplier undertakes to observe and control the conditions and requirements as set out in the applicable Codes and Sustainability Handbooks, which are updated from time to time by PUMA.
- 2.5. Supplier undertakes to inform employees about the content of PUMA's Code of Conduct and display the Code of Conduct highly visible for the employees in the production area.
- 2.6. Supplier acknowledges and will further be of every necessary and required assistance, that production enterprises and manufacturing plants owned by itself or by a subcontractor which are used to manufacture/supply PUMA Products or materials, components or parts thereof ("**Manufacturing Plants**"), respectively, can be visited and inspected by any designated representative of PUMA at any time during regular business hours. In case of such inspection, all relevant records and business documents shall be handed over to any representative authorized by PUMA for inspection.
- 2.7. In case Supplier subcontracts a third party to fulfill its contractual duties towards PUMA / World Cat or any Principal, Supplier undertakes to choose only subcontractor which are pre-approved by PUMA and which undertake towards Supplier to comply, with respect to Component Manufacturing, with the social and environmental standards required by PUMA in the Codes and Sustainability Handbooks, the Annexes to the Declaration of Principles and this Declaration of Principles.
- 2.8. Supplier guarantees, that any subcontractor will implement the standards laid out in the Codes, Sustainability Handbooks and the Declaration of Principles and ensure that such subcontractor signs the Declaration of Principles.
- 2.9. Supplier acknowledges to be fully aware of the legal, economical and practical importance of the Declaration of Principles, including the Annexes to the Declaration of Principles, and that Supplier is completely aware of the scope and the contents of the Declaration of Principles, including the Annexes to the Declaration of Principles. The adherence to the Codes, Sustainability Handbooks and the Declaration of Principles, including the Annexes to the Declaration of Principles, is legally binding for the Supplier.
- 2.10. Clause 7.2 of the IP Right Protection Undertaking executed by Supplier shall apply equally to this Declaration of Principles.

Signed on behalf of Supplier:

Company Name: Paxar Bangladesh Ltd.

Address: Plot: 167-169, Dhaka EPZ Extension Area, Savar, Dhaka-1349, Bangladesh

Plot: 17-20 & 29-32, DEPZ Old Zone, Savar, Dhaka-1349, Bangladesh.

Date: June 04, 2026

Representative: Ryan Cabrera Tuazon

Title: Director, Operations & Supply Chain

Signature: _____



Annex A

to the Declaration of Principles

Anti-Corruption Statement

Anti-Corruption Statement

1. Supplier undertakes to observe and to comply with the anti-corruption policies and / or guidelines of PUMA as set out in the Codes and all applicable anti-bribery and anti-corruption laws, regulations and rules.
2. Supplier undertakes that no offer, gift, consideration or benefit of any kind, which constitutes an illegal or corrupt practice, has been or will be provided directly or indirectly to any person or unit/organization, either public or private, as an inducement or reward for or in relation to its right to Component Manufacturing.
3. Supplier further undertakes to inform PUMA, World Cat or the respective Principal immediately in the event that it becomes aware of any corrupt practice or conflict of interest situation in relation to the Component Manufacturing.

Annex B

to the Declaration of Principles

Building Safety Policy

Building Safety Policy

1. General

World Cat intends to establish its building safety program on a global scale and to work globally only with suppliers which recognize and implement sufficient building safety standards.

2. Building Safety Policy

- 2.1. Supplier undertakes to provide a safe working environment for its employees as described in the Occupational Health & Safety Handbook and to prove that its buildings comply with the national building code, or, in its absence, with international building safety standard regulations.
- 2.2. Upon signing of this Declaration of Principles, Supplier shall provide World Cat a valid certification concerning building safety issued by the appropriate local authority or international organization as determined by PUMA or World Cat from time to time.

Annex C

to the Declaration of Principles

Animal Protection Policy

Animal Protection Policy

1. Supplier undertakes to refrain from sourcing or processing any raw materials from any endangered species as being defined by the International Union for Conservation of Nature (IUCN).
2. In particular, the following materials shall not be used in Component Manufacturing in any way or form:
 - (i) furs, hides or skins from exotic animals like crocodiles, snakes or fishes;
 - (ii) downs and feathers that are plucked from living geese or birds; and
 - (iii) wool from sources where mulesing practices are applied, regardless of the country of origin.
3. In addition, the use of leathers, furs, hides and/or skins from animals that have been treated inhumanely, without distinguishing whether these animals are wild or farmed, is prohibited.

Annex D

to the Declaration of Principles

PUMA Sustainability Audit Policy

PUMA Sustainability Audit Policy

1. Any Manufacturing Plant needs to reach the required standards of social, environmental and health and safety as described in the PUMA Code of Conduct and the Sustainability Handbooks. PUMA's strategy of continuous social and environmental improvement applies to all partners involved in Component Manufacturing.
2. The PUMA Sustainability Audit is the process by which PUMA assesses the level of compliance of the Manufacturing Plant to the required level as laid out in the Sustainability Handbooks.
3. The PUMA Sustainability Audit is a requirement for all Manufacturing Plants, including sub-contracted units, where either full production or final assembly of Products or manufacture/supply of materials, components or parts thereof is completed. In certain cases, as determined by PUMA, World Cat or the respective Principal, the Supplier will be required to present a valid PUMA Sustainability Audit report, as described in the Social Standards Handbook, for their sub-suppliers of components or materials.
4. PUMA Sustainability Audits may be carried out by PUMA, any of its affiliates or external auditors engaged by PUMA.
5. PUMA utilizes the Fair Factory Clearinghouse ("**FFC**") as its compliance database. FFC enables its members to share audit and factory information. Supplier authorizes PUMA to share the PUMA Sustainability Audit report and/or corresponding information with FFC members. PUMA may also collaborate with other third parties not being members of the FFC and share the PUMA Sustainability Audit report and/or corresponding information with these parties. PUMA will not share business secrets or commercially sensitive information, such as:
 - terms of trade, including but not limited to prices
 - capacity, production volumes or sales forecast
 - previous, current or future stock levels
 - information on commercial negotiations with the Supplier.

Notwithstanding the foregoing, commercially sensitive information does not include wage, hour and similar information relating to conditions at audited facilities. Nor does it conclude aggregate industry data made up or comprised of commercially sensitive information from which the aggregate data was derived, as long as company-specific business secrets or commercially sensitive information of individual companies are not accessible.

6. PUMA reserves the right to accept third party reports from other third parties, including but not limited to FLA accredited brands or under the ILO Better Work Program.

7. PUMA may collaborate with third parties, including but not limited to other FFC members, to develop a corrective action plan. Such collaboration may also include a joint audit with third parties.
8. The PUMA Sustainability Audit can be conducted under announced or un-announced circumstances.
9. PUMA reserves the right to charge back all or part of the costs of the PUMA Sustainability Audits, including travel expenses to the Supplier and / or Manufacturing Plant. This applies to PUMA Sustainability Audits carried out by PUMA, any of its affiliates or external auditors engaged by PUMA.
10. The PUMA Sustainability Audit grades each Manufacturing Plant with a score ranging from A to D, the details of which can be found in the Social Standards Handbook. Grade C and D are considered fail. The minimum required standard for a Manufacturing Plant is B. The cost of a re-audit, including travel expenses will be borne by the Supplier.

Annex E

to the Declaration of Principles

Restricted Substances Policy

Restricted Substances Policy

1. Standard Operating Procedure

PUMA has implemented a standard operating procedure (the "**SOP**") which serves as guidance for suppliers to ensure that the testing protocol, the certification and the reporting requirements regarding restricted substances are followed and that all Components/Products pass relevant consumer product safety laws.

2. PUMA's Restricted Substances List & Product/Component Safety Policy

- 2.1 The PUMA Sustainability Handbook - Chemical Management (available online under <https://about.puma.com/en/sustainability/codes-policies-and-handbooks>) contains in detail the requirements and guidelines of PUMA's Restricted Substances List (the "**RSL**") and product related environmental standards. The PUMA policy on product safety and restricted chemical substances ensures that the Components/Products comply with global product safety regulations.
- 2.2. PUMA requires that all materials and chemicals used in Component Manufacturing follow the latest version of the AFIRM* RSL and ZDHC** MRSL (available online under *AFIRM: <http://afirm-group.com/> ; **ZDHC: <http://www.roadmapzero.com/>).
- 2.3 For the purpose of this Restricted Substances Policy,
 - i. a PUMA referenced Tier 1 supplier or Factory of finished products is referred to as "**Factory**"; and,
 - ii. a Tier 2 supplier of raw materials or component parts used by Factory is referred to as "**Supplier**".

3. Third Party Testing Laboratories

- 3.1 PUMA provides the latest RSL to its nominated and approved laboratories (the "**Third Party Testing Laboratories**"). PUMA determines which tests are to be performed on which materials and defines the test parameters. This information is also communicated to the Third Party Testing Laboratories.
- 3.2 The global list of Third Party Testing Laboratories with contact and location details is provided in the Chemical Management Handbook and in the PUMA RSL Database (the "**Database**"). The Database can be accessed through this link: <http://puma.rslinsight.com>

4. RSL Responsibilities and Compliance Procedure

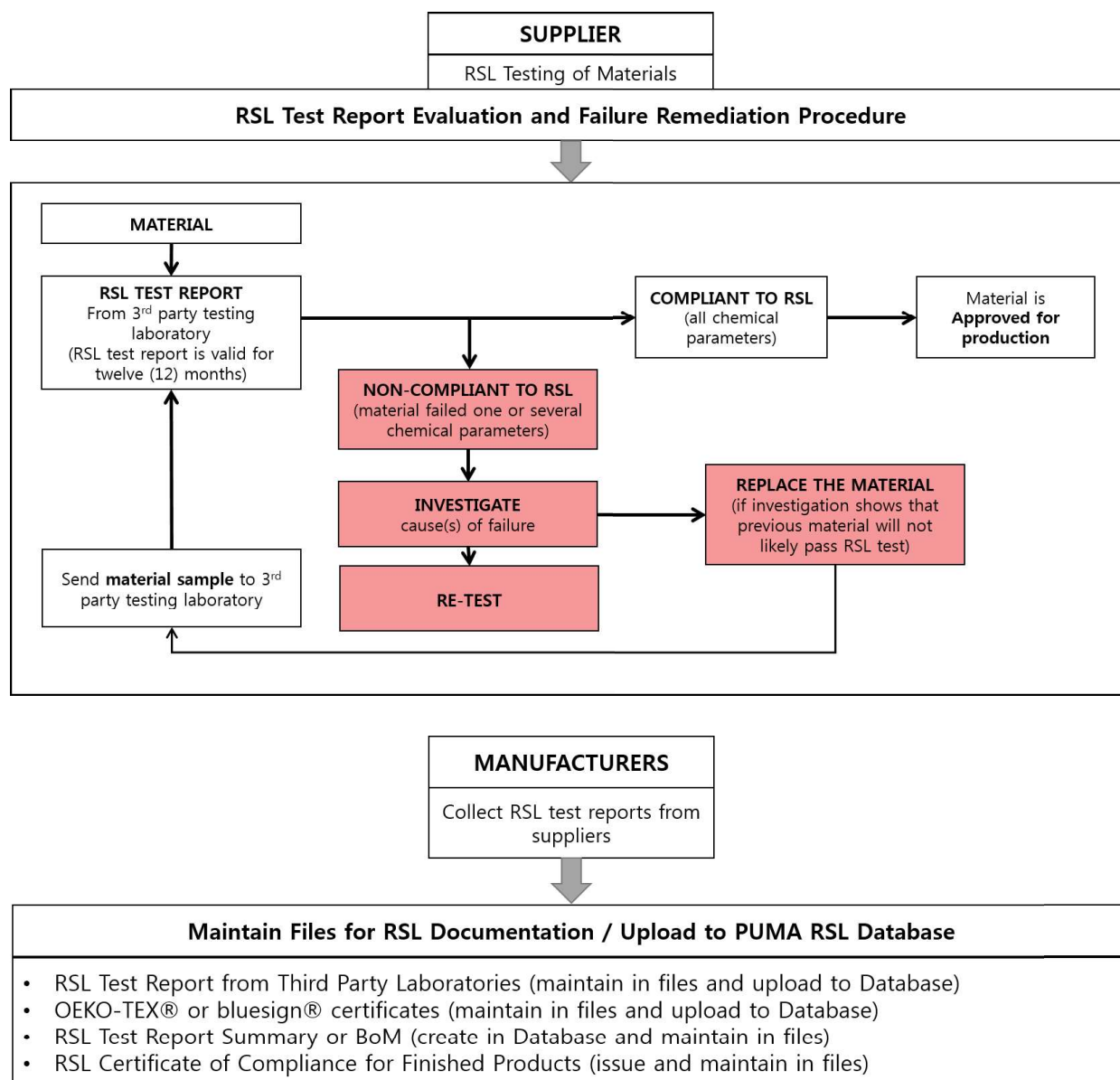
- 4.1 Supplier must ensure that materials used in Component Manufacturing are tested for RSL compliance according to the designated SOP, before production starts.
- 4.2 Testing shall be done at Third Party Testing Laboratories to ensure compliance with the RSL. All RSL test reports shall be entered into the Database. Supplier shall ensure that:

- (i) The Test Request Form (the "**TRF**") is filled in and entered into the Database by sub-suppliers according to the instructions provided in the Database training manual;
- (ii) Materials meet the latest RSL requirements;
- (iii) Chemical products used in the Component Manufacturing comply with the ZDHC MRSL.

4.3 Supplier shall respect the following SOP for the reporting and communication of the RSL status:

- (i) Upon receipt of the confirmed sample for bulk production, Supplier shall refer to the bill of material (the "**BoM**") or article specification for the list of materials that will constitute the complete product/component;
- (ii) The Supplier shall collect information of RSL test reports from the sub-suppliers as uploaded in the Database which consists of material name/code, material description and laboratory report number. For the avoidance of doubt, in case there is no RSL test report from a sub-supplier, Supplier shall be responsible for the RSL testing of the materials and uploading the results onto the Database.
- (iii) For RSL test reports, the following shall apply:
 - a. Supplier shall check each report for any failure on any chemical parameter;
 - b. RSL test reports are valid for twelve (12) months from the date of issuance of the report;
 - c. In the event of a test failure, Supplier shall contact the sub-supplier and request a re-test of the material on the failed parameter. If the material still fails to meet the requirements after a re-test, the material shall be replaced with a material that passes the RSL test;
- (iv) The Supplier shall prepare the RSL test report summary by creating a BoM in the Database;
- (v) The Supplier shall prepare PUMA's RSL "**Certificate of Compliance for Finished Products**". A template can be found on the PUMA website at <https://about.puma.com/en/sustainability/environment/chemicals>;
- (vi) The Supplier shall download a copy of each material test report from the Database and keep files of RSL reports to ensure that such reports are readily available upon request. Supplier shall keep the RSL documentation for a minimum of five (5) years or longer in case required by product safety laws. The documentation should comprise the following, where applicable:
 - a. RSL test reports from Third Party Testing Laboratories (or the relevant OEKO-TEX® or bluesign® certificates);
 - b. PUMA Certificate of Compliance for Finished Products; and
 - c. BoM and the PUMA RSL summary report.

For further guidance through PUMA's RSL testing and remediation process, please see the flow chart below:



5. Deviations from the general RSL requirements

- 5.1. All Products (including Components) intended for children (14 years old and younger) shall be tested, in addition to the RSL test of materials, according to further regulations of any country where the Products (including Components) shall be distributed, i.e. USA, EU, Japan, Korea, China, etc.
- 5.2. PUMA accepts RSL test reports of materials done for other AFIRM-member brands (www.afirm-group.com) as well as valid bluesign® and OEKO-TEX® certificates on material level. Test reports or certificates shall cover all parameters as required in the Chemical Management Handbook. Otherwise, additional tests shall be conducted for parameters which have not been tested (for example PVC).

6. Penalties in case of RSL Failure

Penalties for RSL failures on finished Products/Components shall be charged to the Supplier according to the table below:

Number of RSL test failure	Penalty
First (1st) RSL test failure within a calendar year	USD 10,000.00
Second (2nd) RSL test failure within a calendar year	USD 50,000.00
Third (3rd) RSL test failure within a calendar year	PUMA, World Cat and / or Principal shall have the right to terminate the Manufacturing Agreement or any other agreement with Supplier.

The above penalties do not include the cost of re-call, disposal or destruction of the Products/Components either by PUMA, World Cat, the Principal or government authorities as well as penalties imposed by any governing body or country responsible for product safety law being violated, which will be charged in addition as occurred to Supplier violating the RSL.

Annex F

to the Declaration of Principles

PUMA Cotton Sourcing Policy

PUMA Cotton Sourcing Policy

1. Supplier undertakes to refrain from sourcing or processing any fibre, yarn, fabric or textiles manufactured from cotton cultivated and/or processed in Uzbekistan or Turkmenistan for the Products/Components or in Component Manufacturing.
2. Supplier will not permit any subcontractor to make use of any fibre, yarn, fabric or textiles manufactured from cotton cultivated and/or processed in Uzbekistan or Turkmenistan for the Products/Components or in Component Manufacturing.
3. PUMA and/or Principal or any affiliate designated by PUMA and/or any Principal have the right to request cotton sourcing information such as certificates of origin and invoices from the Supplier to prove the country of origin for any cotton fiber used in Products/Components or in Component Manufacturing.

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IP Right Protection Undertaking

Authorized Party

Name: <<VNAME>>

Address: <<VADDRESS>>, <<VCOUNTRY>>.

[Where applicable, insert the name of T1 manufacturer OR it could be left blank in case of nominated T2/T3 supplier]

Company

Name: <<FNAME>>

Address <<FADDRESS>>, <<FCOUNTRY>>.

[Please insert name and address of T2/T3 supplier, as applicable]

1. General

- 1.1. PUMA SE with registered seat at PUMA Way 1, 91074 Herzogenaurach, Federal Republic of Germany ("PUMA") is the parent company of various legal entities across the globe, in particular World Cat Limited, with registered seat at 21st Floor, AIRSIDE, No.2 Concorde Road, Kai Tak, Kowloon, Hong Kong ("**World Cat**").
- 1.2. World Cat acts as agent for various principals, in particular PUMA International Trading GmbH, Herzogenaurach, a wholly-owned subsidiary of PUMA, other affiliates of PUMA or any other principal designated by World Cat (each a "**Principal**" and together the "**Principals**").
- 1.3. PUMA, as well as COBRA GOLF INC. with business place at 1818 Aston Ave, Carlsbad, CA 92008, USA, ("**Cobra Golf**"), or any other Principal are the owners of certain trademarks, particularly, but not limited to, the "jumping cat" device, the "PUMA" name/wordmark and the "formstrip" device, as well as all secondary trademarks and the like in respect of which PUMA, Cobra Golf or any other Principal have obtained registration (the "**Trademarks**"). In addition, trademarks, secondary trademarks and the like of the same description as aforesaid, including those obtained in the future, shall be deemed to be Trademarks, irrespective whether registered or not.
- 1.4. Besides the Trademarks, all intellectual property, including, but not limited to, all inventions, innovations, improvements and discoveries (whether patentable or not), technology, patents, utility models, designs, know-how, trade secrets, trademark rights, trade names, copyrights and neighboring rights, data bases, copyrighted materials, authors' works, processes, procedures, results, ideas, developments, materials, equipment, technical information, specifications, recipes, formulae, preparation methods, techniques, tech packs, standards, training material and other information and data conceived and/or reduced to practice and/or developed (all

whether registered or not) (together the "**IP**") which PUMA, Cobra Golf or any other Principal (each an "**IP Owner**" and together the "**IP Owners**") own, use, acquire or license currently or in the future in the context of Component Manufacturing and/or marketing, assembling or application of Components (both as defined hereinafter) shall, together with the Trademarks, be defined as the "**Principal IP**".

- 1.5. World Cat has entered or may enter into an agreement or agreement(s) with one or more manufacturers (each an "**Authorized Party**") pursuant to which the Authorized Party shall manufacture or have manufactured and supply the Principals with products branded with the Trademarks and/or developed with the Principal IP, namely sport, sport-lifestyle and lifestyle shoes and footwear, apparel and various accessories, including, but not limited to, bags, sports equipment, balls and the like, or samples of such products.
- 1.6. World Cat or an Authorized Party may require or procure the manufacturing and supply of materials, components or parts therefor, all of which shall have high and constant quality (the "**Components**"). During the manufacturing, development and/or design of the Components (all such activities (regardless of trademark branding and quality) shall be defined as "**Component Manufacturing**"), the observance of certain standards are necessary.
- 1.7. The IP Owners have directly or indirectly authorized certain manufacturers, traders and agents, amongst others the Authorized Party, to make use of the Principal IP under various obligations and instructions, inter alia, not to conduct or commence business with sub-authorized third parties (e.g. component supplies) in relation to the Components without requesting from such a sub-authorized third party, as your Company, to sign the present IP right protection undertaking (the "**IP Right Protection Undertaking**") in favor of the IP Owners. Accordingly, your Company which is supposed to use one or more of the Principal IP in the course of business is requested to comply with this IP Right Protection Undertaking in order to ensure and protect the validity, integrity and image of the Principal IP. The Authorized Party may provide the Company with the required details and component/product specifications (including the tech packs) for the Component Manufacturing (the "**Standards**").

2. Protection of Trademarks and other Principal IP

- 2.1. No Transfer of Rights. All rights, title and interest in and to the Principal IP shall be exclusively owned by the respective IP Owner and, therefore, this IP Right Protection Undertaking and any contractual relationship between the Authorized Party and the Company shall not be or deemed to be a transfer or grant of license of any such Principal IP to the Authorized Party and / or the Company. For the avoidance of doubt, the Company shall have no right to use the Principal IP and, in particular, shall not use the same for its own manufacture or for shipments or orders of any other customer whatsoever unless otherwise instructed by the IP Owners, or their affiliates, in particular World Cat, in writing and the Company shall have no interest in or claim to the Principal IP. Any use of the Principal IP shall inure to the benefit of the IP Owners. Any use of the Principal IP by the Company shall be limited to a use solely in connection with the Component Manufacturing in accordance with the terms and conditions of this IP Right Protection Undertaking.

- 2.2. No Attachment of Marks. The Company undertakes to affix any marks in respect of the Trademarks to the Components or any other item only to the extent necessary to comply with purchase orders placed under an agreement or sales contract with the Authorized Party or the instructions of World Cat.
- 2.3. No Distribution. The Company undertakes not to sell, offer for sale or otherwise distribute, use or supply third parties, neither inside nor outside of its home country, with (i) any Components or products using Principal IP, in particular bearing the Trademarks, or (ii) any surplus or overrun of Components or (iii) Components which do not meet the Standards, regardless whether rejected or returned by the Authorized Party, World Cat or any of its affiliates, without the prior written consent of World Cat which consent shall be in World Cat's sole discretion.
- 2.4. Non-compliant Components. In case the Company has manufactured Components which do not meet the Standards (the "**Non-compliant Components**") or is otherwise in the possession of Non-compliant Components, the Company shall strictly follow World Cat's instructions with respect to such Non-compliant Components. Notwithstanding the generality of the foregoing, such Non-compliant Components shall be kept at World Cat's free disposal, and if not otherwise instructed by World Cat, shall be destroyed by the Company free of charge in due time in a way previously approved by World Cat in writing (after notice given by the Company in due time) or, in case such approval has not been granted, in the presence of World Cat. This Section 2.4 shall apply accordingly to the cartons, containers, packaging and labeling materials of the Components, B-Grade Components and C-Grade Components or otherwise unsatisfactory Components in possession of the Company, directly or indirectly.
- 2.5. No Production of Components with Style Violation. For the sake of clarification, the Company shall have no right to manufacture, have manufactured or assist others in manufacturing or supplying Components or products which incorporate or apply a trademark, design or style which is identical or comparable to a trademark, design or style being part of the Principal IP (whether registered, registrable or not) (each a "**Style Violation**"), irrespective of whether such Components or products bear the Trademarks or not. For any such Components or products with Style Violation, Section 2.4 shall apply accordingly.
- 2.6. Notification of Authorized Party. If the Company becomes aware of any impairment or infringement of any of the Trademarks or other Principal IP, the Company shall immediately notify PUMA, so that the IP Owners may take appropriate action as they deem reasonably necessary.
- 2.7. Observance of Obligations. The IP Owners and World Cat, shall be entitled to monitor observance of the obligations contained in in this IP Right Protection Undertaking by the Company at any time. Therefore, the Company shall grant and procure to the IP Owners or World Cat or any person authorized by them free access to all premises and manufacturing plants of the Company or any sub-contractor where the Component Manufacturing is conducted, or corresponding parts, components or packaging and labeling materials thereof are being produced, manufactured or stored.
- 2.8. Sub-Contractors. If and to the extent the Company intends to conduct the Component

Manufacturing with involvement or support of sub-suppliers, sub-contractors or other support companies contributing to the Components, including, but not limited to, vendors of components, the Company shall inform the Authorized Party and World Cat thereof with reasonable advance notice. Upon receipt of such information, World Cat shall have the right to refuse a sub-contractor within twenty (20) working days. If World Cat does not refuse a sub-contractor within such twenty (20) working day period, such sub-contractor shall be deemed approved (any approved sub-contractor, a "**Sub-Contractor**"). World Cat shall be entitled to revoke the approval for a Sub-Contractor at any time at its sole discretion. Prior to any disclosure of Confidential Information (as defined in Section 4.1) or Principal IP to a Sub-Contractor, the Company undertakes to enter into an agreement with substantially the same terms and conditions as between the Authorized Party and the Company with such Sub-Contractor and to provide for the signature of an IP right protection undertaking in the form of this IP Right Protection Undertaking by such Sub-Contractor. The Company shall provide the Authorized Party and World Cat with signed copies of such documents prior to the manufacture of the Components. Notwithstanding the conclusion of the IP right protection undertaking and/or an agreement between Company and the Sub-Contractor with the same terms and conditions as between the Authorized Party and the Company, the Company shall be responsible and liable for any violations of the obligations of this IP Right Protection Undertaking by its Sub-Contractors.

- 2.9. Further commitment. The Company shall ensure by means of appropriate contractual arrangements with the employees, representatives and/or Sub-Contractors that they are bound by and comply with the provisions of this IP Right Protection Undertaking during their work or services and beyond term of such work/service relationship, as far as permitted by applicable law, e.g. by using non-compete and non-solicitation agreements, and, at the request of the Authorized Party or World Cat, to present such arrangements to the Authorized Party and World Cat. The Company shall be liable for any breach of the obligation of secrecy by the aforesaid employees, representatives and/or Sub-Contractors as though the breach was its own without any possibility of being granted a discharge.

3. IP in Component Manufacturing

- 3.1. Company Background IP. If and to the extent the Company uses IP included in its own existing proprietary technologies or other existing IP for the Component Manufacturing (the "**Company Background IP**"), the Company guarantees to be the owner or authorized licensee of such Company Background IP and commits to maintain appropriate agreements with third party IP owners/licensors. The Company grants to World Cat and the respective Principal a non-exclusive right and license to distribute, sell or otherwise use the Components, which have been produced with the Company Background IP, without limitation whatsoever during the term of any contractual relationship with the Authorized Party and thereafter. Such non-exclusive right and license shall be deemed paid for and compensated by the purchase price for the Components agreed upon in the respective sales contract between the Authorized Party/World Cat and the Company.

3.2. Foreground IP. If and to the extent new IP will be generated in the course of the Component Manufacturing (the "**Foreground IP**"), such Foreground IP shall belong solely and entirely to the respective Principal or IP Owner involved in the generation of such Foreground IP, regardless whether generated by the respective Principal or IP Owner, the Authorized Party, the Company, a Sub-Contractor or jointly. In order to complete such ownership by the respective Principal or IP Owner, the Parties agree the following: the Company herewith assigns and transfers to the respective Principal or IP Owner any and all Foreground IP (to the extent (co)owned by the Company). The respective Principal or IP Owner, represented by the Authorized Party or World Cat (as the case may be), hereby accepts such assignment and transfer. To the extent such assignment and transfer of Foreground IP is legally not possible, the Company grants to the respective Principal or IP Owner an exclusive, worldwide, irrevocable, royalty free, locally and substantially unlimited, transferable, sub-licensable and fully paid-up right to use the Foreground IP in its original or in any modified form and in any known and - as of the signing of this IP Right Protection Undertaking - unknown way. This grant of rights is hereby accepted by the respective Principal or IP Owner, represented by the Authorized Party or World Cat (as the case may be). The Company shall produce state of the art documentation on the Foreground IP enabling the respective Principal or IP Owner to efficiently make use of the Foreground IP. The Company guarantees that the Foreground IP is free from third party rights and commits to maintain appropriate agreements with third party IP owners/licensors.

4. Confidentiality Obligation

4.1. Confidential Information. "**Confidential Information**" within the meaning of this IP Right Protection Undertaking shall be all information, documents, details, data, materials and tooling relating to/or being part of the Principal IP, the Company Background IP, the Foreground IP, the Standards and/or the Component Manufacturing (in particular, but not limited to, styles, designs, know-how and trade secrets). Confidential Information shall further include all information, documents, details and data which is marked as confidential or is to be seen as confidential because of its nature, in particular information concerning internal company affairs such as methods, order processing structures, customer sales figures and corporate data of PUMA or any other Principal, as well as information about the respective organization and the employees and any other information exchanged before or during or after the term of this IP Right Protection Undertaking and any knowledge gained under or in connection with the contractual relationship between the Company and the Authorized Party as well as under or in connection with this IP Right Protection Undertaking of fundamentals, functions, production, manufacturing and new development.

4.2. Non-disclosure. The Company shall keep all Confidential Information which becomes known to it during and after the performance of the contractual relationship with the Authorized Party strictly confidential and only use such Confidential Information for the contractually agreed purposes. Notwithstanding the generality of the foregoing, the Company undertakes in relation to the Confidential Information

4.2.1. to use the Confidential Information (and in particular the Principal IP)

only for the purposes of the contractual relationship with the Authorized Party and complying with World Cat's instructions, where applicable and for no other purpose and not to make any further commercial use thereof and not to use the same for the benefit of itself or of any third party; and

- 4.2.2. not to copy, reproduce or reduce to writing any part of the Confidential Information (and in particular the Principal IP) except as may be reasonably required for the use of the Principal IP and that any copies, reproductions or reductions to writing so made shall be the property of the respective IP Owner.

The Company shall ensure that no photo, film or sound recordings nor any other recording or copy of the Confidential Information will be made without the prior written consent of World Cat. Consequently, the Company shall ensure that Confidential Information shall not be disclosed or accessible to any other customer of the Company or any other third party in its premises or wherever.

- 4.3. Measures. The Company shall take the most stringent of reasonable measures to prevent unauthorized access, use and accidental loss or dispersion of the Confidential Information. Such measures include (without limitation)
 - 4.3.1. implementing adequate technical and organizational measures allowing access only to those employees or representatives or Sub-Contractors who require access to serve the Component Manufacturing and allowing such access only to the extent reasonably necessary (need-to-know principle); and
 - 4.3.2. heeding compliance with a reasonable confidentiality policy and setting adequate contractual barriers.
- 4.4. Non-Access for Third Parties. The Company undertakes that (i) competitors of PUMA or any other Principals as well as (ii) any other customer of the Company will have no access to the production and development facilities and premises, including, but not limited to, the manufacturing plants, during the process of manufacturing the Components.
- 4.5. Return of Information. Upon request of World Cat or upon termination of the contractual relationship between the Company and the Authorized Party regarding the use of Principal IP, the Company undertakes to immediately return or procure the return to Authorized Party or to delete all Confidential Information and all documentation or other information on the Principal IP (and particularly on Foreground IP) held by the Company or any Sub-Contractor without taking any copies thereof.
- 4.6. Further commitment. The Company shall ensure by means of appropriate contractual arrangements with the employees, representatives and/or Sub-Contractors that they are bound by and comply with the provisions on Confidential Information during their work or services and beyond term of such work/service relationship, as far as permitted by applicable law, e.g. by using non-compete and non-solicitation

agreements, and, at the Authorized Party's or World Cat's request, to present such arrangements to the Authorized Party and World Cat. The Company shall be liable for any breach of the obligation of secrecy by the aforesaid employees, representatives and/or Sub-Contractors as though the breach was its own without any possibility of being granted a discharge.

- 4.7. Disclosure. Unless agreed otherwise, the duty of confidentiality does not apply for Confidential Information (i) if the Confidential Information is in the public domain – unless the Confidential Information has come into the public domain or been received from an independent source following a breach by the Company – or could also have been obtained by the Company in some other legally admissible way (however, any reengineering or circumvention of the Principal IP is not allowed), or (ii) Confidential Information which necessarily must be disclosed to the extent required by law, a judicial order or any regulatory authority. However, in these circumstances the Company shall promptly give notice to World Cat of the disclosure before such disclosure occurs.
- 4.8. Survival. The obligations of this Section 4 shall apply from the signing of this IP Right Protection Undertaking and beyond termination of a contractual relationship between the Company and the Authorized Party.

5. **Liability of the Company**

- 5.1. Compensation. In case of any violation of duties or obligations of the Company under this IP Right Protection Undertaking, the Company shall compensate any damage resulting from such violation. In case of any (i) non-authorized use of the Principal IP or (ii) disclosure of Confidential Information (each an "**IP Violation**"), the Company shall compensate the respective IP Owner all damages resulting from such IP Violation. In particular, but not limited to, the following actions shall constitute an IP Violation:
- 5.1.1. a violation of the undertakings contained in Section 1.6, 3 or 4;
 - 5.1.2. the manufacturing, offering, putting on the market, importing, exporting or using of an item with Style Violation, unless World Cat authorizes such action. If World Cat or any IP Owner alleges a Style Violation, the burden of proof for non-violation or non-involvement of the Company lies with the Company.
- 5.2. Liquidated Damages. Notwithstanding Section 5.1, in case of an IP Violation, the Company undertakes to pay to the respective IP Owner without proof of damage within fifteen (15) days following the notification of such breach, liquidated damages in the amount of
- 5.2.1. ten (10) times the price obtained or likely to be obtained for those Components or products manufactured or sold by way of an IP Violation; such price shall be calculated by reference to the market price of the Components or products of the same or a similar type. For the avoidance of doubt, any such price shall be calculated as if such Components or products were perfect in every aspect; or
 - 5.2.2. USD 50,000 for each single case of an IP Violation, whichever is higher.

Any IP Violation which lasts longer than seven (7) calendar days shall be qualified as new and separate IP Violation which triggers additional liquidated damages as set out in this Section 5.2. The provisions of this Section 5.2 shall be without prejudice to any other action, proceeding or claim for damages of whatsoever nature by World Cat or the respective IP Owner for a breach of this Section 5.2 or any other provision of this IP Right Protection Undertaking. Regarding any claims World Cat or the respective IP Owner might have against the Company pursuant to this IP Right Protection Undertaking, the Company cannot refer World Cat or the respective IP Owner to assert its claims directly against a Sub-Contractor.

- 5.3. Impairment or Infringement of the Principal IP. The Company hereby acknowledges that any unauthorized application or use of the Trademarks or other Principal IP by it or any Sub-contractor, employee, officer or other person, firm, company or organization under its control will render the Company liable to the respective IP Owner for the impairment or infringement of the Trademarks or other Principal IP. In such case, the Company shall assist the IP Owners in suppressing such impairment or infringement of the Trademarks or other Principal IP, including, but not limited to, the institution of proceedings for injunctive and other equitable relief.

6. Indemnity

The Company hereby indemnifies, defends and holds World Cat, the IP Owners and the Principals as well as licensees, distributors, associated companies, employees, directors, officers, agents, customers and representatives harmless from and against all liabilities, claims, actions, demands of liability, suits or other proceedings and any losses, damages, sanctions, fines, expenses or other cost, including reasonable attorney fees or disbursements, or judgments (the "**Claims**"), that are or may be raised by any third party in connection with any IP Violation, including without limitation, Claims related to infringement of third party IP. The foregoing indemnification shall be valid and enforceable regardless of whether the Components have been manufactured in accordance with the Standards. In case third parties allege Claims against the Company, the Company shall immediately inform World Cat. World Cat and the respective IP Owner have the right at any time to steer and control the underlining proceedings. Any Claims of the Company against World Cat, the Principals and the IP Owners as well as licensees, distributors, associated companies, employees, directors, officers, agents, customers and representatives shall be excluded unless and to the extent they are based on willful misconduct. The Company shall in particular have no Claims in connection with any phase of the Component Manufacturing.

7. Miscellaneous

- 7.1. Undertaking for the Benefit of Third Parties. If not expressly stated otherwise in this IP Right Protection Undertaking, all claims which might arise from the provisions of this IP Right Protection Undertaking can be asserted by the respective Principal and IP Owner as well as World Cat.
- 7.2. Applicable Law; Jurisdiction. This IP Right Protection Undertaking and its interpretation shall exclusively be governed by the laws of the relevant jurisdiction specified in

Attachment 1 hereto without recourse to the principles of conflicts of laws. Any dispute, controversy, difference or claim arising out of or relating to this IP Right Protection Undertaking, including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or relating to it shall be referred to and finally resolved in accordance with the relevant provision in **Attachment 1** hereto.

- 7.3. Mailing of Undertaking. The original of this IP Right Protection Undertaking shall be sent by air courier to the respective IP Owner as designated by World Cat, with a copy to the Authorized Party and a second copy to World Cat.

In witness whereof, this IP Right Protection Undertaking is hereby signed on this

_____ day of _____, in _____.

Company : <<FNAME>>

Company Stamp & Authorized Signature

Name : _____

Position : _____

ATTACHMENT 1

BANGLADESH

Where the Company is incorporated under the laws of BANGLADESH, the following provisions shall apply:

Governing Law:

This IP Right Protection Undertaking and its interpretation shall exclusively be governed by the laws of Bangladesh without recourse to the principles of conflicts of laws.

Dispute Resolution:

Any dispute, controversy, difference or claim arising out of or relating to this IP Right Protection Undertaking, including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or relating to it shall be referred to and finally resolved by arbitration administered by the Hong Kong International Arbitration Centre (HKIAC) under the HKIAC Administered Arbitration Rules in force when the Notice of Arbitration is submitted. The seat of arbitration shall be Hong Kong. There shall be three (3) arbitrators and the arbitration proceedings shall be conducted in English. However, Principal, IP Owner and/or World Cat shall at its own discretion also have the right to take Company to any other court competent according to any national or foreign laws.

CAMBODIA

Where the Company is incorporated under the laws of THE PEOPLE'S REPUBLIC OF CAMBODIA, the following provisions shall apply:

Governing Law:

This IP Right Protection Undertaking and its interpretation shall exclusively be governed by the laws of Hong Kong without recourse to the principles of conflicts of laws.

Dispute Resolution:

Any dispute, controversy, difference or claim arising out of or relating to this IP Right Protection Undertaking, including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or relating to it shall be referred to and finally resolved by arbitration administered by the Hong Kong International Arbitration Centre (HKIAC) under the HKIAC Administered Arbitration Rules in force when the Notice of Arbitration is submitted. The seat of arbitration shall be Hong Kong. There shall be three (3) arbitrators and the arbitration proceedings shall be conducted in English. However, Principal, IP Owner and/or World Cat shall at its own discretion also have the right to take Company to any other court competent according to any national or foreign laws.

PEOPLE'S REPUBLIC OF CHINA

Where the Company is incorporated under the laws of THE PEOPLE'S REPUBLIC OF CHINA, the following provisions shall apply:

Governing Law:

This IP Right Protection Undertaking and its interpretation shall exclusively be governed by the laws of Hong Kong SAR without recourse to the principles of conflicts of laws.

Dispute Resolution:

Any dispute, controversy, difference or claim arising out of or relating to this IP Right Protection Undertaking, including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or relating to it shall be referred to and finally resolved by arbitration under the Arbitration Rules of China International Economic and Trade Arbitration Commission (hereinafter "CIETAC Rules"), by three arbitrators, appointed in accordance with CIETAC Rules. The seat of the arbitration shall be in Shanghai. The language of the arbitration shall be English. However, Principal, IP Owner and/or World Cat shall at its own discretion also have the right to take Company to any other court competent according to any national or foreign laws.

INDIA

Where the Company is incorporated under the laws of INDIA, the following provisions shall apply:

Governing Law:

This IP Right Protection Undertaking and its interpretation shall exclusively be governed by the laws of Hong Kong without recourse to the principles of conflicts of laws.

Dispute Resolution:

Any dispute, controversy, difference or claim arising out of or relating to this IP Right Protection Undertaking, including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or relating to it shall be referred to and finally resolved by arbitration administered by the Hong Kong International Arbitration Centre (HKIAC) under the HKIAC Administered Arbitration Rules in force when the Notice of Arbitration is submitted. The seat of arbitration shall be Hong Kong. There shall be three (3) arbitrators and the arbitration proceedings shall be conducted in English. However, Principal, IP Owner and/or World Cat shall at its own discretion also have the right to take Company to any other court competent according to any national or foreign laws.

INDONESIA

Where the Company is incorporated under the laws of INDONESIA, the following provisions shall apply:

Governing Law:

This IP Right Protection Undertaking and its interpretation shall exclusively be governed by the laws of Indonesia without recourse to the principles of conflicts of laws.

Dispute Resolution:

Any dispute, controversy, difference or claim arising out of or relating to this IP Right Protection Undertaking, including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or relating to it shall be referred to and finally resolved by arbitration before three (3) arbitrators.

The seat of arbitration will be Jakarta, Indonesia and the arbitration will be administered by the Indonesian National Board of Arbitration (Badan Arbitrase Nasional Indonesia or "BANI") in accordance with the rules of BANI in force on the date on which the request for arbitration is received by BANI with all proceedings conducted in English. Assuming there are two or more BANI offices established during the Dispute arises, the parties agree to choose only one BANI office to settle the Dispute and shall not raise any action or claim that the choice or validity of such BANI office is illegal.

The arbitral award made and granted by the arbitrators shall be final, binding and incontestable and may be used as a basis for judgment thereon in the Republic of Indonesia or elsewhere. The parties agree that there will be no appeal to any court or other authority from the decision of the arbitrators and the parties shall not dispute nor question the validity of such award before any judicial or other authority of any enforcement action taken by the party in whose favor the award was rendered. The arbitrators must state the reasons for their decision in writing and shall be bound by strict rules of law in making the decision and shall not be entitled to render a decision *ex aequo et bono*.

Neither of the parties shall be entitled to commence or maintain any action in a court of law upon any matter in dispute arising from or in relation to this IP Right Protection Undertaking except for the enforcement of an arbitral award granted pursuant to this Article. During the period of submission to arbitration and thereafter until the granting of the arbitral award, the parties shall, except in the event of termination, continue to perform all their obligations under this IP Right Protection Undertaking without prejudice to a final adjustment in accordance with the relevant award. The parties irrevocably waive the applicability of Articles 48(1) and 73(b) of Law No. 30 of 1999 on Arbitration and Alternative Dispute Resolution so that the mandate of the arbitrators duly constituted in accordance with the terms of this IP Right Protection Undertaking shall remain in effect until a final arbitration award has been issued by the arbitrators.

No party shall be entitled to commence or maintain any action in a court of law upon any matter which has been submitted to arbitration under this IP Right Protection Undertaking until such matter has been determined by the arbitrators and then thereafter only for the enforcement of the award.

Each party waives any requirement under any law that the arbitration award must be rendered within a certain period of time.

MEXICO

Where the Company is incorporated under the laws of MEXICO, the following provisions shall apply:

Governing Law:

This IP Right Protection Undertaking and its interpretation shall exclusively be governed by the laws of Hong Kong without recourse to the principles of conflicts of laws.

Dispute Resolution:

Any dispute, controversy, difference or claim arising out of or relating to this IP Right Protection Undertaking, including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or

relating to it shall be referred to and finally resolved by arbitration administered by the Hong Kong International Arbitration Centre (HKIAC) under the HKIAC Administered Arbitration Rules in force when the Notice of Arbitration is submitted. The seat of arbitration shall be Hong Kong. There shall be three (3) arbitrators and the arbitration proceedings shall be conducted in English. However Principal, IP Owner and/or World Cat shall at its own discretion also have the right to take the Company to any other court competent according to any national or foreign laws.

MYANMAR

Where the Company is incorporated under the laws of MYANMAR, the following provisions shall apply:

Governing Law:

This IP Right Protection Undertaking and its interpretation shall exclusively be governed by the laws of Hong Kong without recourse to the principles of conflicts of laws.

Dispute Resolution:

Any dispute, controversy, difference or claim arising out of or relating to this IP Right Protection Undertaking, including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or relating to it shall be referred to and finally resolved by arbitration administered by the Hong Kong International Arbitration Centre (HKIAC) under the HKIAC Administered Arbitration Rules in force when the Notice of Arbitration is submitted. The seat of arbitration shall be Hong Kong. There shall be three (3) arbitrators and the arbitration proceedings shall be conducted in English. However Principal, IP Owner and/or World Cat shall at its own discretion also have the right to take the Company to any other court competent according to any national or foreign laws.

TAIWAN

Where the Company is incorporated under the laws of TAIWAN, the following provisions shall apply:

Governing Law:

This IP Right Protection Undertaking and its interpretation shall exclusively be governed by the laws of Hong Kong without recourse to the principles of conflicts of laws.

Dispute Resolution:

Any dispute, controversy, difference or claim arising out of or relating to this IP Right Protection Undertaking, including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or relating to it shall be referred to and finally resolved by arbitration administered by the Hong Kong International Arbitration Centre (HKIAC) under the HKIAC Administered Arbitration Rules

in force when the Notice of Arbitration is submitted. The seat of arbitration shall be Hong Kong. There shall be three (3) arbitrators and the arbitration proceedings shall be conducted in English. However Principal, IP Owner and/or World Cat shall at its own discretion also have the right to take the Company to any other court competent according to any national or foreign laws.

TURKEY

Where the Company is incorporated under the laws of TURKEY, the following provisions shall apply:

Governing Law:

This IP Right Protection Undertaking shall be governed by and construed in accordance with the laws of the Turkish Republic without regard to conflict of laws principles which may apply the laws of any other jurisdiction.

Dispute Resolution:

The Istanbul Central Courts and Enforcement Offices shall have exclusive jurisdiction over any dispute, controversy, difference or claim arising out of or relating to this IP Right Protection Undertaking, including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or relating to it.

VIETNAM

Where the Company is incorporated under the laws of VIETNAM, the following provisions shall apply:

Governing Law:

This IP Right Protection Undertaking and its interpretation shall exclusively be governed by the laws of Hong Kong without recourse to the principles of conflicts of laws.

Dispute Resolution:

If any controversy or claim under this IP Right Protection Undertaking cannot be settled amicably, the matter shall be referred to and finally resolved by arbitration administered by the Vietnam International Arbitration Centre at the Vietnam Chamber of Commerce and Industry ("VIAC") in accordance with its Rules of Arbitration from the time being in force. The arbitration tribunal shall consist of three (3) arbitrators and the arbitration proceedings shall be conducted in English. The seat of arbitration shall be Vietnam.

No party shall have the right to institute any proceeding in any court of law except for enforcement of an Award of Arbitration pursuant to the arbitration provisions above or for requesting injunctive relief compelling compliance with confidentiality, intellectual property and similar obligations under this IP Right Protection Undertaking.

OTHERS

Where the Company is incorporated under the laws of any jurisdiction other than those specified above, the following provisions shall apply:

Governing Law:

This IP Right Protection Undertaking and its interpretation shall exclusively be governed by the laws of Hong Kong without recourse to the principles of conflicts of laws.

Dispute Resolution:

Any dispute, controversy, difference or claim arising out of or relating to this IP Right Protection Undertaking, including the existence, validity, interpretation, performance, breach or termination thereof or any dispute regarding non-contractual obligations arising out of or relating to it shall be referred to and finally resolved by arbitration administered by the Hong Kong International Arbitration Centre (HKIAC) under the HKIAC Administered Arbitration Rules in force when the Notice of Arbitration is submitted. The seat of arbitration shall be Hong Kong. There shall be three (3) arbitrators and the arbitration proceedings shall be conducted in English. However, Principal, IP Owner and/or World Cat shall at its own discretion also have the right to take Company to any other court competent according to any national or foreign laws.